



FALL from Grace

J.D. Vyas, Ahmedabad
K.M. Bhut, Rajpipla
A.S. Rana, Ahmedabad
K.C. Kella, Porbandar
M.S. Shaikh, Himmatnagar
K.K. Valshya, Amreli
P.P. Chaudhary, Vadodra
M.G. Baraiya, Veraval
A.A. Shaikh, Gandhinagar
C.S. Gaur, Amreli
J.S. Vahla, Ahmedabad
N.C. Shukla, Navsari
R.K. Sargani, Ahmedabad
M.R. Gohil, Nadiad
R.P. Mehta, Valsad
N.C. Barot, Surat
K.K. Hathila, Vadodara



who were also asked to retire, had a decent image and the step is being seen as too harsh. Overall, it is a landmark decision that can only have a positive fallout.

Significantly, the Pay Commission's report in 1999 made several important recommendations with a view to streamlining the judicial hierarchy at the lower level by enhancing the pay structures of judges and bringing about an overall improvement in their service conditions. One of its recommendations was that the high court should review the performance of the lower judiciary on the basis of their overall integrity, speedy disposal of cases and quality of judgements in order to weed out inefficient people and those of doubtful integrity. The judicial service rules were framed in 2005 on the basis of the commission's recommendations but action could only be taken in May despite the fact that the Chief Justice of India K.G. Balakrishnan had written a strong letter to high courts across the country last year to weed out judges of questionable integrity and efficiency using the new judicial service framework.

The step was in keeping with the reputation of Justice Radhakrishnan, who has made a name for himself with sound judgements and scrupulous regard for judicial propriety as well as public welfare. His hand in the recent clean-up is evident but considering the rot in the legal system, this action can only be labelled as a beginning, albeit a welcome one. And the Supreme Court's latest directive on barring tainted judges from becoming heads of tribunals or commissions post-retirement has come as the last nail in the coffin. The apex court also warned lawyers against abusing the judicial process by pressuring the registry and adopting delaying tactics by remaining absent from legal proceedings. But it remains to be seen whether Gujarat's example will be replicated in the higher judiciary and other courts in the country where corruption and inefficiency have become a law unto themselves. ■

Court before taking this step. The initial reaction suggests that it has sent a very positive signal that the judicial fraternity is expected to adhere to minimum standards or else serious repercussions will follow." Adds Vijay Patel, who heads the Gujarat Bar Council: "It's a concrete step to curb that trend but care has to be taken that each such step is justifiable on the basis of evidence."

Amongst the judges who were punished was M.S. Shaikh who faced a departmental inquiry on the

charge of disbursing huge amounts of money as compensation in several accident cases. The Gujarat High Court had passed strictures against him. K.M. Bhut, another judge who has been punished, had charges of doubtful integrity levelled against him. The quality of judgements given by him in selected cases too had come under the scanner. C.S. Gaur, principal senior civil judge, Amreli, was asked to put in his papers due to inefficiency and slow disposal of cases. Two other judges—A.S. Rana and R.K. Sargani—